

CHAPTER 46

An Act to amend the law governing the making of contracts by or on behalf of bodies corporate; and for connected purposes. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Cases where contracts need not be under seal.

1.—(1) Contracts may be made on behalf of any body corporate, wherever incorporated, as follows:—

- (a) a contract which if made between private persons would be by law required to be in writing, signed by the parties to be charged therewith, may be made on behalf of the body corporate in writing signed by any person acting under its authority, express or implied, and
- (b) a contract which if made between private persons would by law be valid although made by parol only, and not reduced into writing, may be made by parol on behalf of the body corporate by any person acting under its authority, express or implied.

(2) A contract made according to this section shall be effectual in law, and shall bind the body corporate and its successors and all other parties thereto.

(3) A contract made according to this section may be varied or discharged in the same manner in which it is authorised by this section to be made.

(4) Nothing in this section shall be taken as preventing a contract under seal from being made by or on behalf of a body corporate.

(5) This section shall not apply to the making, variation or discharge of a contract before the commencement of this Act but shall apply whether the body corporate gave its authority before or after the commencement of this Act.

Exclusion of companies under Companies Acts.
11 & 12 Geo. 6.
c. 38.

2. This Act shall not apply to any company formed and registered under the Companies Act, 1948, or an existing company as defined in that Act.

Powers of Parliament of Northern Ireland.

3. It is hereby declared that the Parliament of Northern Ireland has power to make laws amending the law of Northern Ireland for purposes similar to the purposes of this Act.

4.—(1) This Act may be cited as the Corporate Bodies' Contracts Act, 1960. Short title,
repeal and
extent.

(2) The enactments mentioned in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not affect the law of Scotland or, subject to the provisions of section three of this Act, of Northern Ireland.

SCHEDULE

Section 4.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
35 & 36 Vict. c. 24.	The Charitable Trustees Incorporation Act, 1872.	Section eleven.
56 & 57 Vict. c. 39.	The Industrial and Provident Societies Act, 1893.	In section thirty-five, paragraphs (b), (c) and (d).

CHAPTER 47

Offices Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Regulations for securing health, safety and welfare of persons employed in offices.
2. Explanation of term "office".
3. Duties of employees with respect to things provided under regulations.
4. Posting of abstract of Act and of regulations.
5. Notification of accidents.
6. Enforcement of Act by local authorities.
7. Enforcement of Act as respects offices in factories.
8. Enforcement of Act as respects offices at mines and quarries.
9. Disclosure of trade secrets.
10. Power of county court to modify agreements and apportion expenses.
11. Offences.
12. Expenses.
13. Interpretation.
14. Exclusion of places below ground to which Mines and Quarries Act applies.
15. Short title, commencement and extent.